



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

October 24, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 11924
(FIFTEENTH REVISION)

EXPIRATION DATE: 2026-09-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Packgen
Auburn, ME
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, marking, sale and use of UN13H3 or UN13H4 Flexible Intermediate Bulk Containers (IBC), UN11HG2W Composite IBCs, and UN6HH1 composite packagings for use as the outer packaging for lab pack applications in accordance with § 173.12(b)(2)(ii). This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.12(b)(2)(ii) in that a UN13H3 or UN13H4 Flexible IBC, a UN11HG2W Composite IBC, or a UN6HH1 composite packaging is not authorized as an outer packaging for lab packs, except as specified herein.
5. BASIS: This special permit is based on the renewal application of Packgen dated October 4, 2022, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Waste hazardous materials classed as Class or Division 3, 4.1, 4.2, 4.3, 5.1, 6.1, 8, or 9, which are authorized to be shipped in lab packs in accordance with § 173.12(b).	3, 4.1, 4.2, 4.3, 5.1, 6.1, 8, or 9.	As appropriate	I, II, or III as appropriate

7. SAFETY CONTROL MEASURES:a. PACKAGING: Packaging prescribed is either:

- (1) A UN13H3 or UN13H4 flexible IBC with side pockets used to hold multiwall fiberboard sheets and an inner polyethylene liner with a minimum thickness of six mils;
- (2) A UN13H3 or UN13H4 flexible IBC with an intermediate, multiwall fiberboard sleeve and an inner polyethylene liner with a minimum thickness of six mils;
- (3) A UN11HG2W IBC manufactured in accordance with the requirements of U.S. Department of Transportation Competent Authority Approval CA2006040035; or
- (4) A UN6HH1 composite packaging with an outer receptacle made up from a layer of coated woven polypropylene with an inner core of fiberboard or plastic with wooden vertical slats for added support and hardware attachment points. The inner surface of the fiberboard core is laminated with a poly film and the inner receptacle is a layer made of six millimeter thick LLDPE.

b. TESTING:

- (1) In addition to the performance tests required by Subpart O of Part 178, the IBC, loaded to 205 kg and filled to 95% of its total capacity with a solid material, must be satisfactorily tested in accordance with § 178.603 at the Packing Group II level.

(2) Design qualification testing and periodic requalification testing for the non-UN standard IBC shall be as for a composite IBC except as follows:

(i) Bottom lift test. All IBC designs must be subject to the bottom lift test of § 178.811.

(ii) Top lift test. If the IBC is intended to be top lifted, it shall be subject to the top lift test of § 178.812(b)(2) for flexible IBCs.

(iii) Stacking Test. All IBCs must be subject to the stack test of § 178.815(c)(2) for composite IBCs of other than plastic materials.

(3) Design qualification testing and periodic requalification testing for the composite packaging must be satisfactorily performed in accordance with Subpart M of Part 178 at the Packing Group I performance level.

c. OPERATIONAL CONTROL:

(1) As specified in § 173.12(b)(2)(iii), the gross weight of the complete package may not exceed 205 kg.

(2) During transportation, the outer packaging of the IBC must be securely attached to a pallet that provides complete protection of the base of the outer packaging.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6 only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit but receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated

by the Office of Hazardous Materials Safety (OHMS) for a specific manufacturing facility.

e. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.

f. A test report documenting satisfactory design qualification testing of non-DOT standard IBCs manufactured in accordance with this special permit must be on file with OHMS prior to the sale of such IBCs.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Ben Moore/Casey Chambers